**IN THE NATIONAL COMPANY LAW TRIBUNAL, AHMEDABAD**
**COURT - 2**

ITEM No301

**CA(CAA)/46(AHM)2022**

**Proceedings under Section 230-232 Co.Act,2013**

**IN THE MATTER OF:**

Manish Packaging Pvt Ltd **.....Applicant**
Addon Filmtech Pvt Ltd

**.....Respondent**

**Order delivered on 01/03/2023**

**Coram:**

Dr. Madan B Gosavi, Hon'ble Member(J)
Ajai Das Mehrotra, Hon'ble Member(T)

**PRESENT:**

For the Applicant : Ms. Noopur Dalal, Adv.
For the Respondent :

**ORDER**

The case is fixed for pronouncement of order.

The order is pronounced in open Court vide separate sheet.

-Sd-

**AJAI DAS MEHROTRA**
**MEMBER (TECHNICAL)**

-Sd-

**DR. MADAN B GOSAVI**
**MEMBER (JUDICIAL)**

**IN THE NATIONAL COMPANY LAW TRIBUNAL**
**AHMEDABAD BENCH**
**COURT-II**

# CA (CAA) 46/AHM/2022

[Sections 230-232 and read with other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016]

**In the matter of Scheme of Arrangement**

**For Demerger of**

**Manish Packaging Private Limited,**
(Applicant Company No. 1/Demerging Company)

**Into**

**Addon Filmtech Private Limited**
(Applicant Company No.2/Resulting Company)

**And**

**Their Respective Shareholders and Creditors**

***Order Pronounced on: 01/03/2023***

**CORAM:**

**DR. MADAN B. GOSAVI, HON'BLE MEMBER (JUDICIAL)**
**AJAI DAS MEHROTRA HON'BLE MEMBER (TECHNICAL)**

## MEMO OF PARTIES

**Manish Packaging Private Limited,**
(CIN: U25209GJ1997PTC031603)
Registered office at;
Plot No. 539, Road No. 5,
GIDC Sachin, Surat-394230, Gujarat.

**...Applicant Company No. 1/Demerging Company**

**WITH**

**Addon Filmtech Private Limited,**
(CIN: U25209GJ2021PTC124429)
Registered office at;
18, Raghuvir Bunglow,
Nr. Sarojini Naidu Garden,
Umra, Piplod, Surat-395007, Gujarat- 392001.

**...Applicant Company No. 2/Resulting Company**

**For the Applicants**: Ms. Noopur Dalal, Advocate.

## ORDER

1. The present joint Application is filed under Section 230-232 with other applicable provisions of the Companies Act, 2013 and read with the Companies (Compromise, Arrangement, and Amalgamations) Rules, 2016. The proposed Composite Scheme of Demerger is for Arrangement between M/s Manish Packaging Private Limited (Demerging Company) and M/s Addon Filmtech Private Limited (Resulting Company) and their respective Shareholders and Creditors, with effect from the Appointed Date on the agreed terms and conditions as set out in the Scheme annexed in accordance with Sections 230 to 232 of the Companies Act, 2013.

2. It is represented that the registered office of both the applicant companies are situated within the territorial jurisdiction of Registrar of Companies, Ahmedabad, Gujarat, which is falling under the jurisdiction of this Tribunal.

3. It is submitted that the Demerging Company is incorporated on 29.01.1997 under the provisions of the Companies Act, 1956 having its registered office situated at Plot No-539, Road No-5 GIDC Sachin Surat-394230, Gujarat, India. The corporate identity number of the Demerging Company is U25209GJ1997PTC031603. Certificate of Incorporation is annexed. The Authorised Share Capital of the Demerging Company is Rs. 7,50,00,000/- which is divided into 75,00,000 Equity shares of Rs. 10/- each. Issued, Subscribed and Paid-up Share Capital is Rs. 3,00,00,000/- which is divided into 30,00,000 equity shares of Rs. 10/- each.

4. It is submitted that the Resulting Company is incorporated on 27.07.2021 under the provisions of the Companies Act, 2013 having its registered office situated at 18, Raghuvir Bunglow, Near Sarojini Naidu Garden, Umra, Piplod, Surat-395007, Gujarat, India. The corporate identity number of the Resulting Company is U25209GJ2021PTC124429. The Authorised Share Capital of the Resulting Company is Rs. 1,00,000/- which is divided into 10,000/- Equity shares of Rs. 10/- each and Issued, Subscribed and Paid-up

Share Capital is Rs. 50,000/- which is divided into 5000 equity shares of Rs. 10/- each.

5. Both the Applicant Companies are empowered by their respective Memoranda and Articles of Association to enter into Scheme. Copies of Memoranda and Articles of Association of both the Applicant Companies are placed on record. The copies of Audited Financial Statements as on 31.01.2022 of both the Applicant Companies are placed on record.

6. It is stated that the Demerging Company is engaged, inter alia, in businesses of manufacturing and trading of Plastic materials, plastic articles. The Resulting Company is engaged, inter alia, in businesses of specialty packaging films and trading of Plastic Raw Materials, Chemicals Additives, Finished Goods, etc.

7. The Board of Directors of both Applicant Companies have approved the Scheme at their respective Board Meetings held on 16th February, 2022. Copies of Board Resolutions passed on 16th February, 2022 of both the applicant companies are placed on record.

8. The appointed date as stated in the Scheme is the date of approval/sanction of the present Scheme or any other date as may be prescribed by the Hon'ble NCLT.

9. The Applicant Companies submitted that upon the coming into effect of this Scheme and in consideration of transfer and vesting of the Demerging Undertaking into the Resulting Company, the Resulting Company shall, without any further application or deed, issue and allot shares credited as fully paid up, to the extent and as indicated below, to the shareholders of the Demerging Company, whose names appear in the register of shareholders as on the Effective Date or to their respective heirs, executors, administrators or other legal representatives or the successors-in-title, as the case may be in the following proportion i.e.:

**"18 (Eighteen) equity shares of INR 10/- (Rupees Ten only) each fully paid up of Resulting Company to be issued for every 100 (One Hundred) equity shares of Rs. 10/- (Rupees Ten only) each fully paid up held in Demerging Company."**

10. It is submitted that notice to the RBI is not required since none of the Applicant Companies are registered with the RBI. Notice to the Stock Exchanges and SEBI is also not required since none of the Applicant Companies are listed on any of the Stock Exchanges.

11. It is stated that notice to the Competition Commission of India is not required since the Applicant Companies are below the threshold relating to assets and turnover as mentioned in the Competition Act, 2002.

12. Both the Applicant Companies have filed certificates from their respective Statutory Auditors, confirming the proposed Accounting Treatment being in conformity with the Applicable Accounting

Standards under section 133 of the Companies Act, 2013, read with rule 7 of the Companies (Accounts) Rules, 2014.

13. Both the Applicant companies have submitted that no investigations/proceedings or any winding up proceedings against the Applicant Companies are pending under the Companies Act, 1956/2013.

14. With respect to the Demerging Company**,** it is stated that:

(i) There are 10 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed. All equity shareholders have given their consent by way of affidavits for the proposed composite scheme. The copies of the consent affidavits of all equity shareholders are annexed with the application. Hence, the company is seeking dispensation for convening the meeting of equity shareholders.

(ii) There are 6 secured creditors and Certificate from Chartered Accountant certifying list of Secured Creditors is annexed. All the Secured Creditors have given their consent by way of affidavits for the proposed composite scheme. The copies of the consent affidavits of all the Secured Creditors are annexed with the application. Hence, the company is seeking dispensation for convening the meeting of Secured Creditors.

(iii) There are 24 Unsecured Creditors and certificate from Chartered Accountant certifying list of Unsecured Creditors is annexed. Out of which 21 Unsecured Creditors i.e., 96.60% have given their consent by way of affidavits for the proposed composite scheme of demerger. The copies of the consent affidavits of 21 Unsecured Creditors are annexed with the Application. Hence, the company is seeking dispensation for convening the meeting of Unsecured Creditors.

15. With respect to the Resulting Company**,** it is stated that:

(i) There are 2 equity shareholders and certificate from Chartered Accountant certifying list of shareholders is annexed. Both the equity shareholders have given their consent by way of affidavits for the proposed scheme. The copies of the consent affidavits of both equity shareholders are annexed with the application. Hence, the company is seeking dispensation for convening the meeting of equity shareholders.

(ii) There are no secured creditors. Certificate from Chartered Accountant certifying the NIL secured creditors is annexed with the application. In view of the same, the question of holding the meeting of creditors does not arise.

(iii) There are 2 Unsecured Creditors and certificate from Chartered Accountant certifying list of Unsecured Creditors is annexed. Both the Unsecured Creditors have given their consent by way of affidavits for the proposed composite scheme of demerger. The copies of the consent affidavits of both the Unsecured Creditors are annexed with the application. Hence, the company is seeking dispensation for convening the meeting of Unsecured Creditors.

16. Taking into consideration the submissions and the documents filed therewith, we issue the following directions with respect to convening or dispensing the meeting of the Equity Shareholders, Unsecured and/or Secured Creditors as well as issue of notices to the Regulators as under:

**i) In relation to the Demerging Company :**

a. <u>With respect to Equity Shareholders</u>

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent by way of affidavits from Shareholders.

b. With respect to Secured Creditors

Convening of the meeting of Secured Creditors of the company is hereby dispensed with, in view of 100% consent by way of affidavits from Secured Creditors.

c. With respect to Unsecured Creditors

Convening of the meeting of Unsecured Creditors of the company is hereby dispensed with, in view of 96.60% consent by way of affidavits from Unsecured Creditors.

**ii) In relation to the Resulting Company:**

a. With respect to Equity Shareholders

Convening of the meeting of equity shareholders of the company is hereby dispensed with, in view of 100% consent by way of affidavits from Shareholders.

b. With respect to Secured Creditors

There are no secured creditors in the Company. Hence, convening of the meeting of secured creditors is obviated.

c. With respect to Unsecured Creditors

Convening of the meeting of Unsecured Creditors of the company is hereby dispensed with, in view of 100% consent by way of affidavits from Creditors.

17. In compliance of sub-section (5) of section 230 and Rule 8 of the Companies (Compromise, Arrangements and Amalgamations) Rules, 2016, the Applicant Companies shall send a notice in Form No. CAA. 3 along with explanatory statement and disclosures mentioned under Rule 6, to (i) the Central Government through the Regional Director,

North Western Region, (ii) the Registrar of Companies, Gujarat (iii) to the Income Tax Department along with full details of assessing officer and PAN numbers of all the applicant companies with the copy also to the Chief Commissioner of Income Tax Office, stating that representations, if any, to be made by them be made within a period of 30 days from the date of receipt of such notice, failing which it shall be presumed that they have no objection to the proposed scheme of arrangement. The said notices shall be sent by registered post or by speed post or by courier or by hand delivery at the office of the aforesaid statutory authorities as required by sub-rule(2) of Rule 8 of the Companies (CAA) Rules, 2016. The Aforesaid statutory authorities who desire to make any representation under Sub section (5) of Section 230 shall sent the same to this Tribunal with a copy of the same to the Applicant Company within a period of 30 days from the date of such service.

18. The Application is allowed and disposed of in terms of the above directions.

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**AJAI DAS MEHROTRA**
**MEMBER (TECHNICAL)**

**DR. MADAN B GOSAVI**
**MEMBER (JUDICIAL)**

*Abhishek Steno/Mansi LRA*